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First Hand Account of the Mỹ Lai Massacre from a Defense Counsel

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Interview with Ron Allen, First Hand Account of the Mỹ Lai Massacre from a Defense Counsel, History 150H
 Spring 2021, Conducted by Mark Myers, March 14, 2021

Overview to Interview:

In March of 1968, word of a mass killing of Vietnamese citizens by US troops got out to the American public. They called it The Mỹ Lai Massacre. Late into the Vietnam War, frustration from being in this prolonged conflict started

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to build. Public approval for the war was dropping drastically and large numbers of soldiers were dying every day. The American generals felt like they had to turn to drastic measures. They told their men to shoot their way through the city of Mỹ Lai. They ignored all feelings of wrong doing as they murdered innocent men, women, and children. It was truly an awful tragedy. It is widely considered that the men who were most involved in this were let off easy as they were discharged from the army and not tried in court. Some men who were also left to be punished for crimes they did not commit.

Today, tragedies like this still occur more often than they should. Nonetheless, social change has come a long way in trying to prevent these incidents and providing better responses for when they do happen. Ron Allen was an army lawyer at the time of the incident and was tasked with defending one of the remaining generals. In this interview, Ron speaks about the incident and how he feels it could have been avoided. He provides his opinion on the growth of society since that point and how an incident like The Mỹ Lai Massacre may play out today. It is so important to think about humanity's past mistakes so that they are prevented in the future.

Biography: My grandfather, Ron Allen, went to law school at the University of Alabama and used his degree in many important facets of law. Ron worked as a lawyer for the military, the EPA, Monsanto, and others. Through his work, Ron has met countless people and has so many stories to tell. However, his most interesting is most likely his role in the Mỹ Lai Massacre. The Mỹ Lai Massacre was an event that took place during the United States involvement in the Vietnam War. He was the first defense counsel for Captain Eugene Kotouc, and appeared in the press and on national television twice. After only being out of law school for one year, Ron was thrown in the fire and was asked to defend a man that was supposedly involved in one of the United States' most hated events.

MM:

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Okay, this the interview with Ron about his experiences with the Mỹ Lai Massacre and as an army lawyer. Hi, Ron, how are you today?

Ron:

Fine, how are you doing Mark?

MM:

Good. Thank you.

Ron:

Do I know you Mark? Have I ever met you?

MM:

[Laughs] Yes many times many times. I'm excited to hear more of your stories. Okay. Will you briefly describe your experience in law school and about what schools you attended and that kind of stuff?

Ron:

Yes, I attended the University of Alabama law school, graduated top 25% with a B average. I entered the army immediately thereafter, serving two years as a Quartermaster Officer, and a lawyer. I became the lawyer for Headquarters Command at Fort Carson, Colorado. And while there I trained non-lawyers to handle prosecution, and defense in AWOL [Absent With Out Leave] cases. I handled some of those myself. I investigated The NCO club [Non-Commissioned Officer clubs are organizations for NCOs and their families to talk and share ideas], and I represented Captain Eugene Kotouc, who was the executive officer for Headquarters Command at Fort Carson, Colorado [for activities during and after the Mỹ Lai Massacre]. He asked me to represent him on potential murder charges because he had seen me in action, being my executive officer, and I'd seen him every single day and he trusted me. When he asked me to do it, I was very

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nervous about it because I had only been out of law school about one year, I had absolutely no experience in criminal law, but I agreed to represent him. We then went before General Peers' committee on the cover up, a congressional subcommittee, back to General Peers' Committee. And after that, I left the service. I got a master's in tax law at George Washington University, which I have never used. I became an environmental lawyer with EPA [Environmental Protection Agency], in Atlanta, Georgia for 10 years, became an environmental lawyer for Monsanto [a Agrochemical company] in St. Louis, and then went to Georgia-Pacific in Atlanta for another 18 years as an environmental attorney.

MM:

Can you describe what it was like to be an army lawyer specifically, what's the differences between civilian lawyers and military lawyers?

Ron:

Yes, the main difference between civilian lawyers and military lawyers is experience in the courtroom. Most lawyers straight out of law school, go to medium size or a larger law firm, will do research, write memos, briefs, etc, may question witnesses occasionally, but normally, they will not be in the courtroom for at least three years. In the army you're thrown in the courtroom the first day, and you either make it or you don't. And you had a lot of various experiences that you don't get in civilian life, and that experience, of course, helps you in your career and getting a job in civilian life.

MM:

Can you give a brief description about the Mý Lai Massacre and how you got involved?

Ron:

The massacre occurred in 1968 before I went into the service. It hit the press in 69 when pictures [of the massacre] appeared in either Look, or Life magazine. My executive officer Captain Kotouc had given the briefing the night before, as he was the intelligence officer for the brigade. The women, children, elderly would not be there as they would be at the market[They would go to the market early in the morning because they had no refrigeration.] So anybody you saw, you could assume were Vietcong. And so I represented him. He was not involved in the actual massacre. But being his defense counsel, I got to read all the reports that General Peers and others generated [Over 20,000 pages]. And so I had very detailed knowledge of the massacre: what happened, what caused it, and all other information concerning the massacre.

MM:

Was there anything in the files that you read about, either about before the massacre or during the massacre that you used to help defend your client Captain Kotouc in the trial? [Note that the interviewer misspoke and the transcript shows the correct title for Captain Kotouc.]

Ron:

Now what happened was, after the massacre, Captain Kotouc joined up with the unit that had already left Mỹ Lai, and they were away from there. And he and Captain Medina were interrogating two South Vietnamese, no, I'm sorry, two Viet Cong prisoners. And Captain Kotouc said to one of them, "you're going to talk or else" and pulls out his bowie knife, which he was famous for. The guy wouldn't talk so he slammed down the knife. He accidentally cut off the tip of the little finger. Now that is conduct Unbecoming an Officer and that's Maiming, no ifs, buts, and doubts. The prisoner still would not talk, so he [Captain Kotouc] and Captain Medina went to the side of the clearing. I do not know how big the clearing was. The South Vietnamese police who were there took the

two prisoners on the far side of the clearing. And the evidence shows, it was Captain Kotouc's own interpreter, who said Captain Kotouc raised his finger, and the South Vietnamese police took the two prisoners into the woods and shot them. Now the problem with that Mark, is raising your finger is not an order. There is no way in living hell that I can think of it would be an order. And secondly, I have been told by so many people that have served in Vietnam, that you didn't give orders to South Vietnamese police, they did what they wanted to do. So on that basis, I determined and Captain McDonald, who was the JAG Captain [Kotouc retained later] concluded, there was no basis for a murder charge. General Rogers, Commanding General at Fort Carson, concurred. General Rodgers did not refer the matter to an Article 32 investigation, which is similar to a grand jury in civilian life. An officer would have called all witnesses and written up a report and made a recommendation about a court-martial. And General Rodgers didn't even do that, because he thought there was absolutely no basis for a murder charge. So the army transfers Captain Kotouc to Fort McPherson in Atlanta, Georgia, which is, in my opinion, totally despicable, unfair, unwarranted, unnecessary. But the Commanding General at Fort McPherson, which is M-c-P-h-e-r-s-o-n in Atlanta, Georgia. The commanding general there already had Medina, he wanted another star. So he said, send him down. We'll take care of this guy. And they did have an Article 32. And they did recommend court-martial and they did court-martial him after I got out of service. Now I have never heard of, nor had anyone of the other officers who I met who were defending other people, had ever heard the army doing that, after the commanding general says no prosecution. They sent Kotouc to Atlanta without his family, without his lawyers. Captain McDonald and I stayed at Fort Carson. So we had to go to Fort McPherson occasionally for briefings and whatever, and so it was totally unfair. It was prejudicial. It shouldn't have happened. And Kotouc should never have been charged. And that's what got us so ticked off. Now, when he was court-martialed, the judge who was a JAG Colonel [Judge Advocate General's Corps] if I remember

right, dismissed most of the case and the officers of the court-martial board found him not guilty of everything else. And they should have.

MM:

With all that information, do you think you could have defended one of the other soldiers who actually committed the murder or how would you have dealt with that?

Ron:

Well I knew Captain Kotouc, as far as I was concerned, was not guilty of murder. Could I have represented one of the others? I think I could have in good faith because lawyers are like doctors, whoever comes in you're supposed to represent them. Lieutenant Calley who was charged with killing 35 to over 150 civilians and then who in the evidence did in fact kill I would say over 100, I'm not sure I could have represented him. It was when I read the reports, when I saw the pictures, I was nauseated, it was just horrible what he [and others] did.

MM:

One more thing, how do you think an event like this would play out today? And what do you think? What does that say about the social change that happened since that time? Like with technology, and that kind of like media, that kind of deal? Do you have any thoughts on that?

Ron:

Going back to 69, when it hit the press, it was national in scope. In fact, it was worldwide in scope, because no American unit had ever been accused of killing between 350 and 500 totally innocent civilians. And that's including babies, young kids, mothers, grandmothers, grandfathers. And could it happen today? I think maybe small numbers. It could happen but not anything major. The army has done a lot to train the soldiers on the rules.

And that Geneva Convention and all the things you're supposed to do or not do with prisoners, and there's always one or two isolated incidents, but I don't think it could happen today. One of my problems with what the army did in the Mỹ Lai Massacre and who they prosecuted and did not prosecute, was the fact that some of those soldiers who committed murder, were out of the service. They had already been discharged. Their time of service was up. The army did not make an attempt to call them back into active service and prosecute them because they concluded they didn't have the legal means to do it. I personally doubt that very much. And I thought it was totally unfair for a few people, a few soldiers still in the service, being charged with murder and being subject to possibly life in prison or death penalty. And not go after all of them. I just didn't think it was fair.

MM:

Absolutely. Makes sense. Real quick, do you have any final thoughts or anything you want to add to what happened and how you felt about the incident?

Ron:

Yeah, it was, when I first heard about it. I just couldn't believe that American soldiers could kill people in cold blood, the way they did it. And I was horrified. But as one learns about Vietnam and the way it was fought, body count, free fire zones, innocent killing of civilians by both sides, North Vietnamese intentionally killing civilians and prisoners, etc. The way after the war was over North Vietnam killed over 2 million South Vietnamese citizens. Because North Vietnam was a communist country and that's the way they act. I understood why some of them [American Soldiers] did what they did. And one additional thought the question became, what kind of order did Captain Medina, The Company Commander, give the night before about killing innocent civilians? I've read the order. I have talked to Captain Medina, I read all the reports, I read General Peers' investigation, and nowhere

in that order did he say kill innocent civilians. They did say as Captain Kotouc my client said as the intelligence officer the night before, his information was the women, children, and elderly would be at the market and would not be there, so anyone who you saw was a Vietcong. Now as the platoons, the three platoons, went through Mỹ Lai and found there was really nobody shooting at them, there was an occasional shot and somebody was killed. But Lieutenant Calley, who was in my opinion, totally unfit to be an officer, totally way out of his league, totally had no self confidence, no ability, was not liked by his men, not respected by Captain Medina and the other officers. Once he got word from Medina, “get through that village because we’re taking too much time.” He started shooting the innocent civilians, and told his men to shoot, and a number of them did. If Lieutenant Calley had not been there, I don’t think the massacre would have ever occurred. And Medina’s order, in my opinion, was totally legal and totally appropriate. And the man [Calley] went totally insane.

Transcribed by <https://otter.ai>

Research:

For the historical context of my interview, I felt like the best topic of research would be the Mỹ Lai Massacre itself. Luckily, the JMU databases have journals on this that were helpful in giving myself a background into what my grandfather had experienced. Ron was also nice enough to give me a significant amount of background before the interview was conducted in order to make sure that I had a good understanding. A few sources (included in my bibliography below) gave me great insight into the massacre and how truly awful it was. Without knowing about the massacre and how the United States military handled this, it would not be possible to interpret the interview as it should be. The Military History Journal from Fred Borch did a fantastic job of conveying the feelings of the horrible event even as it happened many years before the journal was published. Another source

had more information about the Vietnam War and the protestors that came with it. I felt like it was important to broaden my research away from the massacre in order to understand the big picture. It was easy to see after reading that journal how the Mỹ Lai Massacre caused the protests to erupt even further.

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Follow-up Commentary and Brief Technological Notes:

Ron and I talked after the interview and shared our thoughts on the transcript. We went through and made sure all of my spelling was correct to our knowledge and made several changes with Ron’s help. We had this conversation on March 27, 2021. The interview was conducted using a combination of zoom and a phone call. Otter ai was used to transcribe the interview, but a lot of editing was done on my part to fix the many errors.

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